

25STCV09687 25STCV09687

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-22

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Case Number: 25STCV09687 Hearing Date: July 22, 2026 Dept: 512

HEARING DATE: Weds., July 22, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: 3rd

& Croft Partners, LLC v. Kreation & COMP. FILED: 04-01-25

1202 Abbot

Kinney, Inc.

CASE NUMBER: 25STCV09687

NOTICE: OK

PROCEEDINGS: MOTION

TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT; MOTION TO QUASH

MOVING PARTY: Defendant

Kreation & 1202 Abbot Kinney, Inc. Merged Into Kreation Juicery Inc.

RESP. PARTY: None

MOTION TO SET ASIDE/VACATE DEFAULT AND DEFAULT JUDGMENT; MOTION TO QUASH

(CCP §§ 473, subd. (d); 473.5)

TENTATIVE RULING:

Defendant Kreation &

1202 Abbot Kinney, Inc. Merged Into Kreation Juicery Inc.'s Motion to Set Aside

and Vacate Default and Default Judgment and to Quash Service of Summons is
GRANTED.

The default entered on May
13, 2025, is VACATED and SET ASIDE, and the default judgment entered on August
21, 2025 and Amended Judgment entered on June 22, 2026 is VACATED and SET ASIDE.

The Proofs of Service
filed on May 9, 2025, are STRICKEN.

The Court schedules an
Order to Show Cause Re: Proof of Service as to Summons and Complaint for September
1, 2026 at 8:30 a.m. in Department 512.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of Service Timely
Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§
1013, 1013a) OK

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of July 20,
2026 [
] Late ☒ None

REPLY: None filed as
of July 20, 2026 [
Late ☒ None

ANALYSIS:

I.
Background

On April 1, 2025, Plaintiff 3rd & Croft Partners, LLC ("Plaintiff") filed the instant Unlawful Detainer action against Defendant Kreation & 1202 Abbot Kinney, Inc. ("Defendant").

On May 9, 2025, Plaintiff filed proofs of service demonstrating the Summons and Complaint were substitute served by a registered process server on Defendant's agent for service of process, Marjan Sarshar ("Sarshar"), on April 10, 2025, by serving a "Chris Doe, Person in Charge Desc: Sex: Male – Age: 30+ - Skin: Hispanic – Hair: Brown – Height: 5 ft 11 in – Weight: 300+" at 12:34 p.m. at the following address: 8428 W 3rd St., Los Angeles, CA 90048" ("West Third Address"). (5/9/25 Proofs of Service.)

On May 13, 2025, default was entered against Defendant.

On August 21, 2025, default judgment of \$119,679.96 was entered against Defendant.

On June 4, 2026, Defendant, merged into Kreation Juicery, Inc., filed the instant Motion to Set Aside and Vacate Default and Default Judgment and to Quash Service of Summons (the "Motion").

On June 22, 2026, the Court ordered that the 8/21/25 judgment be amended to add and substitute Kreation Juicery, Inc. as successor by merger to Defendant. (6/22/26 Order.)

II.

Legal

Standard & Discussion

Defendant

moves to set aside the default and default judgment under Code of Civil Procedure sections 473, subdivision (d), and 473.5. (Motion.) Defendant also moves to quash service of the Summons and Complaint.

A.

Motion to Set Aside

Default and Default Judgment

Code of Civil

Procedure section 473.5

Code of Civil Procedure section 473.5

provides, in pertinent part:

When service of a summons has not

resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5, subd. (a).)

Additionally, the motion “shall be

accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

Here, the Motion

was filed less than two years after entry of default and default judgment. (Code Civ. Proc., § 473.5, subd. (a).)

Further, the Motion is accompanied by

an affidavit from Sarshar, Defendant’s registered agent for service of process, who attests that Sarshar and Defendant were never served with the summons and complaint in this action because service was not effected to a proper address for Sarshar/Defendant; Sarshar and Defendant did not have actual notice of this action in time to defend it; and the lack of notice “was not caused by any avoidance of service or any inexcusable neglect on [Sarshar’s] part or on the part of Kreation.” (Motion, Sarshar Decl., ¶¶ 7-14.) The Motion is also accompanied by a copy of Sarshar’s address of record in the Statement of Information filed by Defendant with the Secretary of State, which states that, as of 2019, Sarshar’s address of record is “9465 Charleville Blvd., Beverly Hills, California 90212” (the “Charleville Address”). (Motion, Sarshar Decl.,

¶¶ 2-5, Exh. A.)

Finally, a proposed Answer and Cross-Complaint are filed with the Motion. (See Code Civ. Proc., § 473.5, subd. (a).)

Thus, Defendant is entitled to relief from default under Code of Civil Procedure section 473.5.

Code of Civil Procedure section 473, subdivision (d)

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d), emphasis added.)

An order is considered “void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence.” (Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1021.) “There is no time limit to attack a judgment void on its face.” (Ibid.) However, if “the invalidity is not apparent [by an inspection of the judgment or the judgment roll], it may be set aside by motion, if such motion is filed within a reasonable time, i. e., not longer than the time set forth in Code of Civil Procedure, section 473.” (City of Los Angeles v. Morgan (1951) 105 Cal.App.2d 726, 730.) Code of Civil Procedure section 473, subdivision (d) contains no express time limit, and the California Supreme Court recently abrogated the rule that Section 473, subdivision (d) is subject to the two-year limit set forth in Code of Civil Procedure section 473.5. (California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 225-226 [“We hold that a section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation”].)

In the context of a default judgment, Code of Civil Procedure section 670 subdivision (a) defines the “judgment roll” as the following papers, without being attached together:

"[T]he summons, with the affidavit or proof of service; the complaint; the request for entry of default with a memorandum indorsed thereon that the default of the defendant in not answering was entered, and a copy of the judgment." (Code Civ. Proc., § 670, subd. (a).)

"California is a jurisdiction where the original service of process, which confers jurisdiction, must conform to statutory requirements or all that follows is void." (Honda Motor Co. v. Superior Court (1992) 10 Cal.App.4th 1043, 1048, overruled on other grounds.)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.' " (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413; see also Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160.) However, a proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Here, the Court finds the Motion timely.

On May 9, 2025, Plaintiff filed proofs of service demonstrating the Summons and Complaint were substitute served by a registered process server on Defendant's agent for service of process, Sarshar on April 10, 2025, by serving a "Chris Doe, Person in Charge Desc: Sex: Male – Age: 30+ - Skin: Hispanic – Hair: Brown – Height: 5 ft 11 in – Weight: 300+" at 12:34 p.m. at the West Third Address. (5/9/25 Proofs of Service.)

Code of Civil Procedure section 415.20, subdivisions (a) and (b) authorize substitute service in lieu of personal delivery, with subdivision (b) stating as follows:

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and

complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

(See Code
Civ. Proc., § 415.20,
subd. (b).)

As to Defendant's challenge to service of process, the challenged proof of substitute service is attested to by a registered process server and, therefore, is entitled to a presumption of truth in its contents. (5/9/25 Proofs of Service.) The burden of proof thus shifts to Defendant. (Cal. Evid. Code, § 647; see *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

In support of the challenge to service of process, Defendant provides a declaration from Sarshar that states Sarshar's proper address for service of process is the Charleville Address, not the West Third Address; no person at the West Third Address was authorized to accept service on behalf of Defendant; no person at the West Third Address was apparently in charge of Sarshar's office as Defendant's designated agent for service of process; and Defendant and Sarshar were never served with the summons and complaint in this action. (Motion, Sarshar Decl., Exh. A; 5/9/25 Proofs of Service.) The Motion is also accompanied by a copy of Sarshar's address of record in the Statement of Information filed by Defendant with the Secretary of State that lists Sarshar's address of record as the Charleville Address as of 2019. (Motion, Sarshar Decl., ¶¶ 2-5, Exh. A.)

The Court finds this evidence suffices to meet Defendant's burden of proof.

Thus, the burden of proof shifts

to Plaintiff. However, Plaintiff did not file an opposition or response to the Motion. As such, the Court finds Plaintiff has failed to satisfy its burden.

Thus, the Motion is GRANTED.

B.

Motion to Quash

Defendant also
moves to quash service of summons pursuant to Code of Civil Procedure section 418.10.

A defendant, on or before
the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1), emphasis added.)

Having
determined the request to set aside default and default judgment should be granted because service of the summons and complaint did not substantially comply with the statutory requirements, the Court GRANTS Defendant's request to quash service of the summons and complaint pursuant to Code of Civil Procedure section 418.10 for the same reasons discussed above.

III.

Conclusion & Order

For the foregoing reasons,
Defendant Kreation & 1202 Abbot Kinney, Inc. Merged Into Kreation Juicery Inc.'s Motion to Set Aside and Vacate Default and Default Judgment and to Quash Service of Summons is GRANTED.

The default entered on May
13, 2025, is VACATED and SET ASIDE, and the default judgment entered on August 21, 2025 and Amended Judgment entered on June 22, 2026 is VACATED and SET ASIDE.

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